

Terms & Conditions

ABOUT US

We, REVOOLA Ltd (also referred to as “REVOOLA” “we”, “us”, or “our”), are a registered company in England (Company no. 10990391). Our registered address is at 27 Old Gloucester Street, London WC1 3AX.

WELCOME

Welcome to REVOOLA. We want you to know and understand your rights and our rights relating to the provision of the Services (as defined below). Please review them carefully.

PLEASE READ THIS LEGAL DOCUMENT CAREFULLY

REVOOLA Limited (together with our affiliates, “REVOOLA” “we”, “us”, or “our”) provides an online fitness community and related products, services, content and features through the REVOOLA website located at www.REVOOLA.com including subdomains, and through mobile and desktop or device applications (including iOS and Android applications) and REVOOLA - controlled social media pages (including on Facebook, Instagram, LinkedIn, Spotify and Twitter) (collectively, the “REVOOLA Service”). By registering as a member or by visiting, browsing, or using the REVOOLA Service in any way, you (as a “user”) accept these Terms of Service (“Agreement”), which forms a binding agreement between you and REVOOLA.

If you access or use the Services on behalf of a company or other entity, you represent that you have authority to bind such entity and its affiliates to these Terms and that it is fully binding on them. In such case, the term “you” will refer to such entity and its affiliates. If you do not have authority, you may not access or use the Services. These Terms contain disclaimers of warranties and limitations on liability that may be applicable to you.

The REVOOLA Services cannot be provided and the agreement described in these Terms of Service cannot be performed without REVOOLA processing data about you, and other REVOOLA members, including your location data. Processing of the data you share with REVOOLA, including location data, is essential to the Services which we provide and a necessary part of our performance of the agreement we have with you. For details of how we handle your data see our Privacy Policy <https://www.REVOOLA.com/privacy-policy/>

WHO MAY USE THE REVOOLA SERVICE

Age Requirement. You must be at least 13 years old to register with and use the REVOOLA Service. Children age 13-17 provided that (a) they and their parent/guardian have signed a REVOOLA waiver and release; and (b) their parent/guardian is available at all times when accessing the service.

We may, in our sole discretion, refuse to offer the REVOOLA Service to any person or entity and change the eligibility criteria at any time. You are solely responsible for ensuring that this Agreement is in compliance with all laws, rules and regulations applicable to you, and the right to access and use the REVOOLA Service is revoked where this Agreement or use of the REVOOLA Service is prohibited or conflicts with any applicable law, rule or regulation. Further, the REVOOLA Service is offered only for your personal use, and not for the use or benefit of any third party.

LICENCE TO USE THE REVOOLA SERVICE

Licence. Subject to your compliance with this Agreement, REVOOLA grants you a limited, non-transferable, non-exclusive, revocable licence to access and use the REVOOLA Service for your own personal, non-commercial purposes. This licence includes the right to view content available on the REVOOLA Service. This licence is personal to you and may not be assigned or sublicensed to anyone else.

Restrictions. Except as expressly permitted in writing by an authorised representative of REVOOLA, you will not reproduce, redistribute, sell, create derivative works from, decompile, reverse engineer, or disassemble the REVOOLA Service, nor will you take any measures to interfere with or damage the REVOOLA Service. All rights not expressly granted by REVOOLA in this Agreement are reserved.

PRIVACY

Our Privacy Policy <https://www.REVOOLA.com/privacy-policy/> forms a part of this Agreement. Please review the Privacy Policy to learn about:

What information we may collect about you;
What we use that information for; and
With whom we share that information.

MEMBERSHIP

To use the Services, you must register. You agree to: (a) provide true, accurate, current and complete information about yourself ("Member Data") and (b) maintain and promptly update the Member Data. You agree that REVOOLA may use your Member Data to provide Services that you access or use and as otherwise set forth in these Terms and in our Privacy Policy. If you provide any Member Data that is inaccurate or not current, or REVOOLA has reasonable grounds to suspect that such Member Data is inaccurate or not current, REVOOLA has the right to suspend or terminate your account and refuse current or future use of the Services. In consideration of your use of the Services, you represent that you are not a person barred from receiving services under the laws of any applicable jurisdiction.

You are solely responsible for maintaining the confidentiality of the password associated with your account and for restricting access to your password, your computer and mobile device while logged into the Services. You accept responsibility for all activities that occur under your account or from your computer and mobile devices. We have put in place appropriate security measures to prevent your personal data from being accidentally lost, used or accessed in an unauthorised way, altered or disclosed. We cannot, however, guarantee absolute security of your account, your Content (as defined below) or the personal information you provide, and we cannot promise that our security measures will prevent third-party "hackers" from illegally accessing the Services or its contents. You agree to immediately notify REVOOLA of any unauthorized use of your account or password, or any other breach of security, and confirm that you understand all risks of unauthorized access to Member Data and any other information or content you provide to REVOOLA.

You may register for or log-in to your account via a third-party network, such as Facebook or Google. If you do so, you hereby authorize REVOOLA to pre-populate the registration and other relevant information fields of your account and/or to use such third-party credentials to log you into your account. If you connect your account to a third-party network, you agree to comply with the terms and conditions and policies applicable to such third party.

By virtue of certain of the Services connecting to the Google Maps API, you hereby agree to be bound by the Google Maps/Google Earth Additional Terms of Service (including the Google Privacy Policy) in connection with your use of such Services.

Profile Information and Picture: You may not use someone else's name, or any name, location or other public profile information that violates any third party rights or that is offensive, obscene or otherwise objectionable (at REVOOLA's sole discretion). Similarly, you may not use any image that violates any third party rights or that is offensive, obscene or otherwise objectionable (in REVOOLA's sole discretion).

Account Security: You are responsible for all activity that occurs under your account, including any activity by unauthorized users. You may not allow others to use your account. You must safeguard the confidentiality of your password, and if you are using a device that others have access to, log out of your account after using the REVOOLA Service. If you become aware of an unauthorized access to your account, change your password and notify us immediately at support@REVOOLA.com.

TERMINATION

Termination for Breach: REVOOLA may, in REVOOLA's sole discretion, suspend, disable, or delete your account (or any part thereof) or block or remove any User Content (defined below) that you submitted if REVOOLA determines that you have violated this Agreement or that your conduct or content would tend to damage REVOOLA's reputation and goodwill. If REVOOLA deletes your account for these reasons, you may not re-register for or use the REVOOLA Service under any other user name or profile. REVOOLA may block your access to the REVOOLA Service to prevent re-registration.

Effect of Termination / Account Deletion. Upon termination of this Agreement all licences granted by REVOOLA will terminate. The following sections survive termination: Submissions, Indemnification, Limitation of Liability, Professional Advice Disclaimer, Medical Disclaimer, Intellectual Property and all General Provisions. In the event of account deletion for any reason, User Content may no longer be available and REVOOLA is not responsible for the deletion or loss of such User Content. For clarity, if you cancel your Subscription or it is terminated for any reason, you will lose access to all live and on-demand classes and any other content or features provided through the REVOOLA Service. REVOOLA, in its sole discretion, may make available a very limited amount of content or features to non-subscribers from time to time.

SUBSCRIPTION FEES

REVOOLA will provide information on its then-current Subscription requirements on the REVOOLA Site and/or by other means through the REVOOLA Service. Features and prices are subject to change.

To pay any fee, you must designate and provide information about your preferred payment method (e.g., credit card, online payment service, a third party, like iTunes or Google Play, or any other payment method made available by REVOOLA) (the "Payment Method"). If you provide your payment information, you authorise us and certain third party service providers, payment card networks and payment processors to receive, store and encrypt your payment information. You may switch to a different Payment Method or update your information by visiting <https://REVOOLA.com/account>. If you signed up through the Google Play or iTunes store, you may change your Payment Method through the corresponding store account. No refunds or

credits will be provided by REVOOLA, other than as set forth in these Terms. If your payment provider determines that there are fraudulent charges on your account resulting from use of your Payment Method at the Services, please contact us immediately via <https://support.REVOOLA.com>.

Auto-Renewal: Membership fees will be billed automatically at the start of the monthly or annual period, as applicable. These fees will auto-renew until your membership is upgraded, downgraded or terminated. Your membership fee will be the same as your initial charges unless you are otherwise notified in advance. You may cancel membership at any time, as described below.

COOLING OFF

If you reside in the European Union you are be entitled to change your mind and receive a full refund within fourteen (14) days (the “Cooling-off Period”), provided that you have not logged in or otherwise redeemed or started to use the Services as a REVOOLA member during the Cooling-off Period.

CANCELLATION

You may cancel your membership by visiting your “Account” page and selecting “Downgrade” or by contacting us at <https://support.REVOOLA.com>. The cancellation of a membership will go into effect at the end of your current billing cycle. When your membership ends, your account will remain unless you request otherwise, You can renew your subscription at any time without opening a new account, although the membership fees may have increased. You can delete your account at any time by going to <https://REVOOLA.com/account>.

FREE TRIALS

Your membership may start with a free trial. The free trial period for any subscription will last for the period of time specified when you signed up. Free trials may not be combined with certain other offers, as specified. If you begin your subscription with a free trial, we will begin billing your Payment Method for monthly membership fees at the end of the free trial period of your subscription unless you cancel your membership prior to the end of the free trial period. Your Payment Method will be authorised for up to approximately one month of service as soon as you register for a free trial. In some instances, your available balance or credit limit may be reduced to reflect the authorisation; however, no charges will be made against the Payment Method unless you do not cancel prior to the end of your free trial period. You may cancel your membership at any time by going to your account settings.

CONTENT

Any video, image, graphics, photos, text, audio recording, content, materials, information or other works (for simplicity, “content”) that is submitted to the REVOOLA Service by or on behalf of users (“User Content”), whether publicly posted or privately transmitted, is the sole responsibility of the person who originated such User Content. You represent that all User Content submitted by or on behalf of you is accurate, complete, up-to-date, and in compliance with all applicable laws, rules and regulations. You acknowledge that all content, including User Content, accessed by you using the REVOOLA Service is at your own risk and you will be solely responsible for any damage or loss to you or any other party resulting therefrom. We make no representations, warranties or guarantees with respect to any content that you access on or through the REVOOLA Service.

As between you and REVOOLA, you own all User Content that you submit to the REVOOLA Service. You grant REVOOLA a worldwide, perpetual, irrevocable, non-exclusive, sublicensable (through multiple tiers), transferable royalty-free license and right to use, copy, transmit, distribute, publicly perform and display (through all media now known or later created), edit, modify, and make derivative works from your User Content for any purpose whatsoever, commercial or otherwise, without compensation to you. In addition, you waive any so-called “moral rights” or rights of privacy or publicity in your User Content. You further grant all users of the REVOOLA Service permission to view your User Content for their personal, non-commercial purposes. If you make suggestions to REVOOLA or through the REVOOLA Service about improving or adding new features or products to the REVOOLA Service or you otherwise provide feedback or testimonials, REVOOLA a worldwide, perpetual, irrevocable, non-exclusive, sublicensable (through multiple tiers), transferable royalty-free license and right to use your suggestions, feedback and testimonials without any compensation or other obligation to you.

CONTENT RESTRICTIONS

You may not upload, post, submit, distribute or transmit (collectively, “submit”) to any portion of the REVOOLA Service any User Content that:

- Infringes any third party’s copyrights or other rights (e.g., trademark, privacy rights, etc.);
- Discloses any third party’s personal information without their consent infringing their privacy or data protection rights;
- Contains sexually explicit content or pornography (provided, however, that non-sexual nudity is permitted);
- Contains hateful, defamatory, or discriminatory content or incites hatred against any individual or group;
- Exploits minors;
- Depicts unlawful acts or extreme violence;
- Depicts animal cruelty or extreme violence towards animals;
- Promotes fraudulent schemes, multi-level marketing (MLM) schemes, get rich quick schemes, online gaming and gambling, cash gifting, work from home businesses, or any other dubious money-making ventures;
- Violates any law.

ELECTRONIC COMMUNICATIONS

The Services may provide you with the ability to send or post messages to forums or chat rooms, speak via internet voice connections or send similar messages and communications to third party service providers, advertisers, your personal contacts, other members and/or REVOOLA. You agree to use communication methods available on the Services only to send communications and materials related to the subject matter for which REVOOLA provided the communication method, and you further agree that all such communications by you shall be deemed your Content and shall be subject to and governed by the Terms and applicable law (including laws regulating direct marketing communications with which you will need to comply with, as applicable). By using communications methods available on the Services, you agree

that (a) all communications methods constitute public, and not private, means of communication between you and the other party or parties, (b) communications sent to or received from third party service providers, advertisers or other third parties with your consent are not be endorsed, sponsored or approved by REVOOLA (unless expressly stated otherwise by REVOOLA) and (c) communications are not routinely pre-reviewed, post-reviewed, screened, archived or otherwise monitored by REVOOLA in any manner, though REVOOLA reserves the right to do so at any time at its sole discretion. You agree that all notices, disclosures and other communications that we provide to you electronically shall satisfy any legal requirement that such communications be in writing.

CONDUCT

We expect you to honour the REVOOLA Community Standards. The Services are for your personal and non-commercial use. You may not modify, copy, distribute, transmit, display, perform, reproduce, publish, license, create derivative works from, transfer or sell for any commercial purposes any portion of the Services, use of the Services or access to Content. You may not use the Services, or assist or encourage any other party, to engage in any of the following Prohibited Activities:

1.
 1. Copying, framing or mirroring any part of the Services;
 2. Accessing the Services to monitor its availability, performance or functionality;
 3. Permitting any third party to access the Services;
 4. Using, copying, modifying, creating a derivative work of, reverse engineering, decompiling or otherwise attempting to extract the source code of the software underlying the Services or any part thereof, unless expressly permitted or required by law, and in any case, without providing prior written notice to REVOOLA;
 5. Publishing, transmitting, distributing or storing content, material, information or data that: (1) is illegal, obscene, defamatory, threatening, harassing, abusive, or hateful or that advocates violence; (2) is harmful to or interferes with the Services or any third party's networks, equipment, applications, services or websites (e.g., viruses, worms, Trojan horses, etc.); (3) infringes, dilutes, misappropriates or otherwise violates any privacy, intellectual property, publicity or other personal rights including, without limitation, copyrights, patents, trademarks, trade secrets or other proprietary information (including unauthorized use of domain names); or (4) is fraudulent or contains false, deceptive or misleading statements, claims or representations (such as "phishing");
 6. Attempting to disrupt, degrade, impair or violate the integrity or security of the Services or the computers, services, Accounts or networks of any other party (including, without limitation, "hacking," "denial of service" attacks, etc.), including any activity that typically precedes attempts to breach security such as scanning, probing or other testing or vulnerability assessment activity, or engaging in or permitting any network or hosting activity that results in the blacklisting or other blockage of REVOOLA internet protocol space;

7. Avoiding payment of charges or fees payable by you with respect to the Services;
8. Committing any act that may be harmful to minors;
9. Distributing, or disclosing any part of the Services in any medium, including without limitation by any automated or non-automated “scraping”;
10. Using any automated system, including, without limitation, “robots,” “spiders,” “offline readers,” etc., to access the Services in a manner that sends more request messages to REVOOLA than a human can reasonably produce in the same period of time by using a conventional web browser;
11. Taking any action that imposes, or may impose, at our sole discretion, an unreasonable or disproportionately large load on our infrastructure;
12. Collecting or harvesting any information relating to an identified or identifiable individual, including account names and information about users of the Services, from the Services;
13. Using the Services for any commercial solicitation purposes;
14. Accessing any content on the Services through any technology or means other than those provided or authorized by the Services;
15. Submitting to the Services or to REVOOLA any personally identifiable information, except as necessary for the establishment and operation of your account;
16. Submitting to the Services or to REVOOLA any information that may be protected from disclosure by applicable law;
17. Bypassing the measures we may use to prevent or restrict access to the Services, including, without limitation, features that prevent or restrict use or copying of any content or enforce limitations on use of the Services or the content therein;
18. Violating any applicable law, statute, ordinance or regulation, or encouraging any conduct that could constitute a criminal offense or give rise to civil liability;
19. Removing any copyright, trademark or other proprietary rights notices contained in or on the Services; or
20. Executing any form of network monitoring or running a network analyser or packet sniffer or other technology to intercept, decode, mine or display any packets used to communicate between the Service’s servers or any data not intended for you.

You are granted a limited, non-exclusive right to create a text hyperlink to the Services for non-commercial use only, provided such link does not portray REVOOLA or any of its products or services in a false, misleading, derogatory or otherwise defamatory manner, and provided further that the linking site does not contain any pornographic, illegal, offensive, harassing or otherwise objectionable material. You are further granted a right to implement any RSS feeds located on the Services for your personal, non-commercial use, solely as described on the

Services. We reserve the right to revoke these licenses generally, or your right to use specific links or RSS feeds, at any time, with or without cause.

You understand that use of certain features of the Services may require you to purchase third party equipment or materials (e.g., Heart Rate Monitors). While REVOOLA may recommend the equipment or materials of certain third party supplier or suppliers, REVOOLA shall have no responsibility for your acquisition or use of any third party equipment or materials and does not guarantee that third party equipment or materials will function with the Services or will be error-free.

You understand that you are responsible for any charges associated with sending communications via your device. You hereby acknowledge that you have the right to communicate with your contacts via the Services.

You represent and warrant that: (i) you are authorised to create your account, whether individually or on behalf of an organization; (ii) you own the Content posted by you on or through the Services or otherwise have the right to grant the rights and licenses set forth in these Terms; (iii) the posting and use of your Content on or through the Services does not and will not violate, misappropriate or infringe on the rights of any third party, including, without limitation, privacy and data protection rights, publicity rights, copyrights, trademark and/or other intellectual property rights; and (iv) you agree to pay for all royalties, fees, and any other monies owed by reason of Content you post on or through the Services.

MEMBER INTERACTION, DEALING WITH THIRD PARTIES

When interacting with other REVOOLA members, you should exercise caution and common sense to protect your personal safety and property, just as you would when interacting with other people you don't know. Your participation, correspondence or personal or business dealings with any third party found on or through the REVOOLA Service, whether regarding payment or delivery of specific goods and services, donations or fundraisers, and any other terms, conditions, representations or warranties associated with such dealings, are solely between you and such third party. You agree that REVOOLA is not responsible or liable for any loss, damage, injury, or other matters of any sort incurred as the result of such dealings.

YOUR REPRESENTATION AND WARRANTIES

For each piece of User Content that you submit, you represent and warrant that: (i) you have the right to submit the User Content to REVOOLA and grant the licenses set out above; (ii) REVOOLA will not need to obtain licences from any third party or pay royalties to any third party; (iii) the User Content does not infringe any third party's rights, including intellectual property rights and privacy rights; and (iv) the User Content complies with this Agreement and all applicable laws.

INDEMNIFICATION

You agree to indemnify, defend, and hold harmless REVOOLA and its directors, officers, employees, and agents, from and against all claims, damages, losses and costs that arise from or relate to (i) your activities on the REVOOLA Service, (ii) any User Content submitted by or on behalf of you or (iii) your violation of this Agreement.

THIRD PARTY LINKS AND CONTENT

There may be links on the REVOOLA Service that let you leave the particular REVOOLA Service you are accessing in order to access a linked site that is operated by a third party. REVOOLA

neither controls nor endorses these sites, nor has REVOOLA reviewed or approved the content that appears on them. REVOOLA is not responsible for the legality, accuracy or inappropriate nature of any content, advertising, products or other materials on or available from any such third party sites. You acknowledge and agree that REVOOLA is not responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the access or use of any of the links, content, goods or services available on or through these third party sites.

DISCLAIMERS

REVOOLA reserves the right to modify the REVOOLA Service, including, but not limited to updating, adding to, enhancing, modifying, removing or altering any content or features of the REVOOLA Service, at any time, in its sole discretion. You are responsible for providing your own access (e.g., computer, mobile device, Internet connection, etc.) to the REVOOLA Service. REVOOLA has no obligation to screen or monitor any content and does not guarantee that any content available on the REVOOLA Service is suitable for all users or that it will continue to be available for any length of time.

REVOOLA provides the REVOOLA Service on an “AS IS” and “AS AVAILABLE” basis. You therefore use the REVOOLA Service at your own risk. REVOOLA expressly disclaims any and all warranties of any kind, whether express or implied, including, but not limited to implied warranties of merchantability, fitness for a particular purpose, non-infringement, and any other warranty that might arise under any law. Without limiting the foregoing, REVOOLA makes no representations or warranties:

- That the REVOOLA Service is or will be permitted in your jurisdiction;
- That the REVOOLA Service will be uninterrupted or error-free;
- Concerning any content, including User Content;
- Concerning any third party’s use of User Content that you submit;
- That the REVOOLA Service will meet your personal or professional needs;
- That REVOOLA will continue to support any particular feature of the REVOOLA Service.
- Concerning sites and resources outside of the REVOOLA Service, even if linked to from the REVOOLA Service.

To the extent that another party may have access to or view content on your device, you are solely responsible for informing such party of all disclaimers and warnings in this Agreement.

TO THE EXTENT ANY DISCLAIMER OR LIMITATION OF LIABILITY DOES NOT APPLY, ALL APPLICABLE EXPRESS, IMPLIED, AND STATUTORY WARRANTIES WILL BE LIMITED IN DURATION TO A PERIOD OF 30 DAYS AFTER THE DATE ON WHICH YOU FIRST USED THE REVOOLA SERVICE, AND NO WARRANTIES SHALL APPLY AFTER SUCH PERIOD.

LIMITATION OF LIABILITY

To the fullest extent permitted by law: (i) REVOOLA shall not be liable for any indirect, incidental, special, consequential, punitive, or exemplary damages, including but not limited to damages for loss of profits, goodwill, use, data or other intangible losses; and (ii) REVOOLA’s total liability to you for all claims, in the aggregate, will not exceed the amount actually paid by you to REVOOLA over the 12 months preceding the date your first claim(s) arose.

PREFESSIONAL ADVICE DISCLAIMER / MEDICAL DISCLAIMER

Professional Advice Disclaimer

THE REVOOLA SERVICE OFFERS HEALTH AND FITNESS INFORMATION AND IS DESIGNED FOR EDUCATIONAL AND ENTERTAINMENT PURPOSES ONLY. YOU SHOULD CONSULT YOUR DOCTOR BEFORE BEGINNING A NEW FITNESS PROGRAM. YOU SHOULD NOT RELY ON THIS INFORMATION AS A SUBSTITUTE FOR, NOR DOES IT REPLACE, PROFESSIONAL MEDICAL ADVICE, DIAGNOSIS, OR TREATMENT. IF YOU HAVE ANY CONCERNS OR QUESTIONS ABOUT YOUR HEALTH, YOU SHOULD ALWAYS CONSULT WITH A DOCTOR OR OTHER HEALTH-CARE PROFESSIONAL. DO NOT DISREGARD, AVOID OR DELAY OBTAINING MEDICAL OR HEALTH RELATED ADVICE FROM YOUR HEALTHCARE PROFESSIONAL BECAUSE OF SOMETHING YOU MAY HAVE READ ON THE REVOOLA SITE OR HEARD ON THE REVOOLA SERVICE. THE USE OF INFORMATION PROVIDED THROUGH THE REVOOLA SERVICE IS SOLELY AT YOUR OWN RISK.

NOTHING STATED OR POSTED ON THE REVOOLA SITE OR AVAILABLE THROUGH ANY REVOOLA SERVICE IS INTENDED TO BE, AND MUST NOT BE TAKEN TO BE, THE PRACTICE OF MEDICAL OR COUNSELING CARE. FOR PURPOSES OF THIS AGREEMENT, THE PRACTICE OF MEDICINE AND COUNSELING INCLUDES, WITHOUT LIMITATION, PSYCHIATRY, PSYCHOLOGY, PSYCHOTHERAPY, OR PROVIDING HEALTH CARE TREATMENT, INSTRUCTIONS, DIAGNOSIS, PROGNOSIS OR ADVICE. THE REVOOLA SERVICE IS CONTINUALLY UNDER DEVELOPMENT AND REVOOLA MAKES NO WARRANTY OF ANY KIND, IMPLIED OR EXPRESS, AS TO ITS ACCURACY, COMPLETENESS OR APPROPRIATENESS FOR ANY PURPOSE. IN THAT REGARD, DEVELOPMENTS IN MEDICAL RESEARCH MAY IMPACT THE HEALTH, FITNESS AND NUTRITIONAL ADVICE THAT APPEARS HERE. NO ASSURANCE CAN BE GIVEN THAT THE ADVICE CONTAINED IN THE REVOOLA SERVICE WILL ALWAYS INCLUDE THE MOST RECENT FINDINGS OR DEVELOPMENTS WITH RESPECT TO THE PARTICULAR MATERIAL.

Medical Disclaimer

In becoming a user of REVOOLA with the intent of using the REVOOLA Service, you affirm that either (A) all of the following statements are true: (i) no doctor has ever informed you that you have a heart condition or that you should only do physical activities recommended by a doctor; (ii) you have never felt chest pain when engaging in physical activity; (iii) you have not experienced chest pain when not engaged in physical activity at any time within the past month; (iv) you have never lost your balance because of dizziness and you have never lost consciousness; (v) you do not have a bone or joint problem that could be made worse by a change in your physical activity; (vi) your doctor is not currently prescribing drugs for your blood pressure or heart condition; (vii) you do not have a history of high blood pressure, and no one in your immediate family has a history of high blood pressure or heart problems; and (viii) you do not know of any other reason you should not exercise; or (B) your doctor has specifically approved of your use of the REVOOLA Service.

If applicable, you further affirm that (a) you are not pregnant, breastfeeding or lactating; or (b) your doctor has specifically approved your use of the REVOOLA Service.

REVOOLA reserves the right to refuse or cancel your membership if we determine that you have certain medical conditions or that the representations set forth above are untrue in any respect.

INTELLECTUAL PROPERTY

You acknowledge that the REVOOLA Service contains software and other content that is protected by copyrights, patents, trademarks, trade secrets or other proprietary rights, and that these rights are valid and protected in all forms, media and technologies existing now or hereafter developed. All REVOOLA-generated content, and content provided to REVOOLA by its partners and licensors, is copyrighted individually and/or as a collective work under the copyright laws of the United Kingdom; further, as between you and REVOOLA, REVOOLA owns a copyright in the selection, coordination, arrangement and enhancement of all content in the REVOOLA Service. Subject to your compliance with this Agreement, and solely for so long as you are permitted by us to access and use the REVOOLA Service, you may download one copy of the application to any single device for your personal, non-commercial home use only, provided you keep intact all copyright and other proprietary notices, and are in compliance with this Agreement. Subject to your compliance with this Agreement, and solely for so long as you are permitted by us to access and use the REVOOLA Service, REVOOLA hereby grants you a limited, revocable, non-exclusive, non-transferable right and license to access and use the content made available on the REVOOLA Service for your personal, non-commercial use of the REVOOLA Service and for no other purpose whatsoever. Unless otherwise specified, copying or modifying any content or using content for any purpose other than your personal, non-commercial use of the REVOOLA Service, including use of any such content on any other website or networked computer environment, is strictly prohibited.

The REVOOLA name, logos and affiliated properties, designs and marks are the exclusive property of REVOOLA Limited. and/or its affiliates, whether registered or unregistered, and may not be used in connection with any product or service that is not ours, or in any manner that is likely to cause confusion as to our endorsement, affiliation or sponsorship of any person, product or service. Nothing contained on the REVOOLA Service should be construed as granting, by implication, estoppel or otherwise, any license or right to use any of our trade names, trademarks or other intellectual property without our express prior written consent.

Any other trademarks appearing on the REVOOLA Service are trademarks of their respective owners. Our partners or service providers may also have additional proprietary rights in the content that they make available through the REVOOLA Service. All rights not expressly granted in this Agreement are reserved.

JURISDICTION AND APPLICABLE LAW

The English courts will have exclusive jurisdiction over any claim arising from, or related to, the REVOOLA Service although we retain the right to bring proceedings against you for breach of these conditions in your country of residence or any other relevant country.

These terms of use and any dispute or claim arising out of or in connection with them or their subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

VARIATIONS

We may revise these terms of use at any time by amending this page. You are expected to check this page from time to time to take notice of any changes we made, as they are binding on you. Some of the provisions contained in these terms of use may also be superseded by provisions or notices published elsewhere on our Site or mobile App.

YOUR CONCERNS

If you have any concerns about material which appears on our site, please contact us at info@REVOOLA.com